



Notification Waiver Determination

Apax Partners LLP – Sedex Information Exchange Limited

Acquisition	Smith UK Bidco Limited, which is owned by investment funds which are advised by Apax Partners LLP (Apax) applied for a notification waiver in respect of its proposed acquisition of 100% of the issued share capital in Sedex Information Exchange Limited (Sedex), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	26 June 2026

Parties to the Acquisition	The acquirer, Apax, is a UK limited liability partnership based in London, UK, and the parent company of a number of entities which provide investment advisory services to private equity funds investing in a range of industry sectors (the Apax Funds). The target, Sedex, is a technology company active in the supply chain management (SCM) software applications sector, specialising in data, insights and professional services to empower supply chain sustainability. Sedex uses a combination of assessment tools, training and auditing services to provide end-to-end supply chain solutions that help businesses identify, manage and address social, ethical, and environmental risks throughout their supply chains – including through the use of the Sedex Members Ethical Trade Audit (SMETA), a standardised social audit methodology. Some Apax Funds’ controlled portfolio companies provide adjacent services in the broader SCM software applications sector in Australia.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: there is a small horizontal overlap between Apax (including its connected entities and Apax Funds’ controlled portfolio companies) and Sedex in the supply of SCM software services, and no overlap in the supply of social audit services, in Australia

	b. there are alternative suppliers of SCM software and social audit services in Australia c. there is a low risk of foreclosure or other concerning conglomerate effects resulting from exclusionary conduct, bundling or tying of services post-acquisition. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act